

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: May 21, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

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**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

LINE

1

POLKINGHORN v. GENERAL MOTORS, LLC
CU25-01685

Demurrer to First Amended Complaint

TENTATIVE RULING

Defendant General Motors LLC's demurrer is sustained with leave to amend in part and overruled in part.

Defendant's demurrer to the first four causes of action is sustained with leave to amend.

A plaintiff must plead facts showing that the claims have not been extinguished by a statute of repose. (*PGA W. Residential Ass'n, Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 178.) Any action covered by Code of Civil Procedure section 871.20 cannot "be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc. § 871.21(b).) At the time Plaintiff filed his complaint, section 871.20(a) applied to any "action seeking restitution or replacement of a motor vehicle pursuant to **subdivision (b) or (d) of Section 1793.2**, Section 1793.22, **or Section 1794 of the Civil Code**, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (Former Code Civ. Proc. § 871.20(a), emphasis added.)

Plaintiff's first two causes of action are clearly subject to the statute of repose. Although Plaintiff claims that his third cause of action for violation of Civil Code section 1793.2(a)(3) is not subject to the new procedures because it is not a cause of action seeking restitution or replacement pursuant to subdivisions (b) or (d) of section 1793.2, this cause of action seeks civil penalties pursuant to subdivision (c) of section 1794. (FAC, ¶ 64.) And, Plaintiff's fourth cause of action for breach of the implied warranty seeks restitution or replacement pursuant to Civil Code section 1794. (*Id.* at ¶ 69.)

There are only three statutory circumstances that toll this statute of repose:

1) the period of time the parties engaged in a qualified third-party dispute resolution process, 2) the period of time the vehicle is out of service by reason of repair for any nonconformity, and 3) the period of time after a pre-suit notice is provided to the manufacturer in order to seek civil penalties prior to commencement of an action. (Code Civ. Proc. § 871.21(c).) Because "[t]he purpose and effect of a statute of repose [] is to

override customary tolling rules arising from the equitable powers of courts”, “statutes of repose are not subject to equitable tolling.” (*Cal. Pub. Employees’ Ret. Sys. v. ANZ Sec., Inc.* (2017) 582 U.S. 497, 508.)

Plaintiff alleges that he “entered into a warranty contract” with Defendant on March 11, 2017 by purchasing the vehicle from Mazzei Chevrolet, an authorized dealership. (FAC, ¶¶ 6, 8.) It can be reasonably inferred from these allegations that Plaintiff took original delivery of the vehicle on March 11, 2017. Plaintiff did not file this action until February 19, 2025, nearly eight years after the date of delivery. Consequently, Plaintiff had to plead, with specificity, some exception to, or a sufficiently lengthy period of tolling of, section 871.21(b). Plaintiff has not alleged any circumstances providing for a sufficient amount of tolling. Plaintiff claims tolling under the “Repair Doctrine”, but does not allege the total period of time the vehicle was out of service for repairs. And, although Plaintiff does allege entitlement to tolling pursuant to the Emergency Rules Related to COVID-19, the tolling provided by those rules is limited to the period between April 6, 2020 and October 1, 2020, a period of only 178 days. (Emergency Rule 9(a).)

Plaintiff contends that it would be a violation of his due process rights to apply the new procedures because it would immediately cut off his remedies or in so short a time that he could not reasonably avail himself of his remedies before the new procedures became effective. “In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right.” (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297.) Plaintiff has not established that no time was left, or only an unreasonably short time was provided, for him to file his action.

The new procedures were signed into law on September 29, 2024 and became effective on January 1, 2025. Plaintiff had over three months after the bill was signed by the governor before it became effective, but makes no attempt to allege or otherwise demonstrate that this period of time was unreasonably short. Plaintiff filed his action on February 19, 2025, after the new procedures had gone into effect.

The law was almost immediately amended to apply only to actions against manufacturers that timely elected to use the new procedures, which became effective on April 2, 2025. But, in enacting this amendment, the Legislature indicated if a manufacturer did not timely make the election, the new procedures “shall not apply to ... actions already filed between January 1, 2025 and the effective date of the act adding this section”. (Code Civ. Proc. § 871.30(c).) This statute establishes the Legislature’s intent that the new procedures would apply to pending actions that had been filed after January 1, 2025 if the manufacturer timely opted into the new procedures.

Defendant's demurrer to the fifth cause of action for fraudulent concealment is overruled.

The running of the statute of limitations for this cause of action does not appear "clearly and affirmatively" from the allegations of the first amended complaint. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881.) Although the cause of action would normally accrue at time of sale, Plaintiff has adequately alleged facts supporting delayed discovery. Plaintiff alleges that the transmission defect is latent. (FAC, ¶ 68.) Plaintiff alleges that the vehicle was presented for repair for a check engine light on April 1, 2024 and for issues with the transmission on June 19, 2024. (FAC, ¶¶ 13-14.) Plaintiff alleges that he "continued to experience symptoms of the defects in the Vehicle" after these repairs were made. (FAC, ¶ 15.) Assuming the allegations are true, Plaintiff would not have had reason to suspect that the transmission was defective until he experienced symptoms of the defect and these symptoms continued despite assertions that the problem had been fixed and the vehicle was operating as intended.

And, the allegations of the cause of action are similar to those found sufficient in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828. Plaintiff has alleged that the transmission was defective (FAC, ¶ 71), Defendant knew of the defects and the hazards they pose (*id.* at ¶ 73), Defendant had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information (*id.* at ¶¶ 74, 76-78), Defendant intended to deceive plaintiff by concealing known transmission problems (*id.* at ¶ 76), Plaintiff would not have purchased the vehicle had he known of the defects (*id.* at ¶¶ 75), and Plaintiff has been damaged in the form of money paid to purchase the car (*id.* at ¶ 82). An adequate transactional relationship is established by the allegation that the vehicle was purchased from an authorized dealership. (*Dhital*, 84 Cal.App.5th at 844.) In fact, "a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects." (*Gilead Tenofovir Cases* (2024) 98 Cal.App.5th 911, 949, review granted.)

Plaintiff shall have 10 days from the date of the hearing to file and serve an amended complaint.

9:30 a.m. CALENDAR

IN RE THE ESTATE OF JAMES ROBERT BELCHER, DECEASED
PR24-00245

First and Final Report of Personal Representative and Waiver of Accounting and Petition for Final Distribution and Waiver of Compensation to Executor and Award of Attorney Fees for Ordinary Statutory Fees and Reimbursement to Personal Representative for Out of Pocket Expenses and Request for Order for Distribution

PREGRANT ORDER

This matter was continued from December 4, 2025, February 25, 2026, and April 2, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since October 2025.

The court on its own motion continues this hearing one final time to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. A personal representative is required to file an Inventory and Appraisal within four months after letters are first issued to the general representative. (Prob. Code §8800(b).) Letters were issued on August 21, 2024; thus, the Inventory and Appraisal was due by December 21, 2024 but was not filed until February 21, 2025. The delay in filing is unexplained.
2. Petition, item 23: The petition states that the real property was distributed by a deed recorded on April 7, 2025. No court order authorized this distribution. The petitioner shall explain.
3. Petition, item 29: A petition for final distribution must provide the detailed description and value of the estate to be distributed. (Solano County Local Rules, Rule 7.66(b).) Stating the percentages to be distributed to each heir is insufficient.
4. The estate is solvent but illiquid. The petitioner shall explain how the requested attorney fees will be paid from an illiquid estate.
5. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.

LINE

4

IN RE THE ESTATE OF SHIRLEY J. SMITH, DECEASED
PR24-00486

Report of Status of Administration

PREGRANT ORDER

The status report filed April 6, 2026 is approved. The court orders that the estate's administration shall continue through October 5, 2026. Unless a petition for final distribution is on file by October 5, 2026, a second status report shall be filed by October 5, 2026.

LINE

5

IN RE THE ESTATE OF DENNIS R. SCHLOSSER, DECEASED
PR25-00547

Petition for Final Distribution on Waiver of Account, for Retention of Reserve, for Waiver of Statutory Compensation to Petitioner, for Allowance of Statutory and Extraordinary Compensation to Counsel, for Reimbursement, and Costs

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

All future compliance hearings are vacated.

LINE

6

IN THE MATTER OF THE MIHAIL GONCHAROFF 2020 FAMILY TRUST
PR25-00669

Verified Petition to Convey Real Property and Transfer Personal Property Pursuant to Premarital Agreement [Prob. Code §850] or in the Alternative, to Enforce Petitioner's Community Property Interests [Prob. Code §5021]

Opposition and Objection to Petition to Convey Real Property and Transfer Personal Property Pursuant to Premarital Agreement [Prob. Code §850] or in the Alternative, to Enforce Petitioner's Community Property Interests [Prob. Code §5021]

Mediation Review

PREGRANT ORDER

This matter was continued from February 26, 2026, to allow the parties to participate in mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and report on mediation and the settlement agreement.

LINE

10

IN RE THE ABLES FAMILY TRUST DATED OCTOBER 4, 2005
PR26-00075

Verified Petition for Relief and Damages For: (1) Undue Influence, (2) Financial Elder Abuse (Welf. & Inst. Code §15610.30); (3) Orders For the Conveyance of Property (Prob. Code §§850, 859); (4) Orders (A) Invalidating Restatement of Trust Property, (B) Confirming Title of Trust Property, (C) Instructing Trustee to Account, and (D) For Constructive Trust (Prob. Code §17200); (5) Breach of Fiduciary Duty; (6) Disinheritance Under Prob. Code §259; and (7) Double Damages Prob. Code §859

Response and Objection to Verified Petition for Relief and Damages

PREGRANT ORDER

This matter was continued from March 30, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Proofs of Service filed April 20, 2026 and the Objection filed April 20, 2026 which resolved the issues with the petition.

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

11

IN RE THE ESTATE OF ROSE BELLA COCHONGCO, DECEASED
PR26-00076

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (On Cal. June 4, 2026)

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The court on its own motion continues this hearing to June 4, 2026, at 9:30 a.m. in Department 22 to allow the petitions to be heard concurrently. Pending the continued hearing the petitioner shall resolve the following issues with the petition to determine succession:

1. The real property must be appraised by the probate referee, not the petitioner.
2. Petition, item 9.a: Either (7) or (8) must be checked.
3. Petition, item 13: The petitioner shall explain why he should receive 100% of the real property when he has a brother who is entitled to 50% under Probate Code section 6402(a).
4. Petition, item 14: The predeceased spouse's name and date of death must be provided. (Solano County Local Rules, Rule 7.51(b).)
5. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 13153.

LINE

12

**IN RE THE ESTATE OF HELEN STEWART, DECEASED
PR26-00078**

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by James Stewart)

Objection to Petition for Probate (filed by Anna Stewart)

Reply to Objection to Petition for Probate

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by Anna Stewart)

PREGRANT ORDER

This matter was continued from March 30, 2026 to allow the parties to address issues with their pleadings. The court has reviewed the Response filed by the petitioner which did not resolve all of the issues with the petition, and the competing petition filed by the objector which has issues.

The court on its own motion continues this hearing to July 1, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the parties shall resolve the following issues as it relates to their pleadings:

As to the Petition filed by James Stewart:

Petition, item 8: The decedent's post-deceased spouse is a beneficiary of the estate and the decedent's trust is the residual beneficiary. However, the information for the personal representative of the Estate of Donald E. Stewart was not provided.

As to the Objection filed by Anna Stewart:

All issues resolved.

As to the Reply filed by James Stewart:

All issues resolved.

As to the Petition filed by Anna Stewart:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
2. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
3. Notice of Petition to Administer Estate, items 4 and 5: The petition seeks admittance of the will and full authority. These boxes must be marked to give correct notice to all interested parties, heirs, and creditors.
4. Proof of Publication: The proof does not state that the petitioner seeks admittance of the will and full authority under the IAEA. Re-publication is required to give correct notice of the relief sought.

LINE

13

IN RE THE ESTATE OF QUINTIN CORTES, DECEASED
PR26-00202

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Christopher Ryan Cortes as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory**

and Appraisal is set for October 26, 2026, at 11:00 a.m. in Department 22. The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 26, 2027, at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

14

**IN RE THE ESTATE OF SHIRLEY ELOISE AUTSIN, DECEASED
PR26-00210**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to July 23, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 2.d: The box checked is requesting a bond amount be fixed but the amount of bond is blank.
2. Petition, item 3.d: An estimated value of the estate must be provided. (Prob. Code § 8002(a)(4).) Unknown is insufficient.
3. Petition, item 5.a: Either (3) or (4) must be checked. Either (7) or (8) must be checked.
4. Petition, item 8: The petition states that the petitioner has no knowledge of the decedent's children's names and addresses. However, the attached death certificate lists the decedent's son and his address. The petitioner shall explain whether they have contacted the son.
5. The petition nominates the Solano County Public Administrator to serve as the personal representative, but no acceptance of the nomination is attached.
6. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
7. The filed Proof of Service does not include the Solano County Public Administrator who is entitled to notice as the nominated representative.

LINE

15

IN RE THE ESTATE OF ALAIN K. VANHORN, DECEASED
PR26-00211

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The court appoints Nelia E. Spangler as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$150,000.00. Letters shall not issue until bond is posted with the clerk. The personal representative shall sua sponte apply for an increase in bond in the event the aggregate value of the estate's assets exceeds \$150,000.00.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for October 26, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 26, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

16

IN THE MATTER OF THE DONALD E. STEWART LIVING TRUST
PR26-00226

Petition to Invalidate the Donald E. Stewart Living Trust Based On Undue Influence

Objection to Petition to Invalidate the Donald E. Stewart Living Trust Based on Undue Influence

PREGRANT ORDER

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

17

**IN RE THE ESTATE OF JOHN JOSEPH ABBEY, DECEASED
PR26-00231**

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

LINE

18

**IN THE MATTER OF THE KATHRYN BARNES TRUST DATED APRIL 1, 2026
PR26-00268**

Petition for Order Confirming that Assests are Property of Trust [Probate Code 850;
17200(b)(1)]

PREGRANT ORDER

The court on its own motion continues this hearing to July 15, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
 2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 851. The court required the petitioner to give notice of the new hearing date at the ex parte hearing.
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